

CONTROLLED UNCLASSIFIED INFORMATION

Justification for an Exception to Fair Opportunity or to Use Brand-Name Restriction

Is this a brand-name justification? ☐ Yes ☒ No

Is this a Bridge Action as defined in the AF Bridge Action Reduction Plan? ☐ Yes ☒ No

Contracting Activity: 17th Contracting Squadron

Purchase Request / Local ID Number: F1Z50X6012A001

Program Name (and Program Element, if applicable): B523 Rooms 201&202 JWICS/SIPR VTC Upgrade (ITR 10956)

Estimated Cost/Price of the Order (including options):

Type Program (see DAFFARS 5302.101 for definitions): ☐ PEO Program ☒ Operational ☐ Enterprise

Type of Determination: ☒ Individual ☐ Class Expires: [click and select]

Fair Opportunity Exception: FAR 16.505(b)(2)(i) (Check the applicable subparagraph below.)

☐ (A) ☐ (B) ☐ (C) ☐ (D) ☐ (E) ☐ (F) ☒ (G) Check this box to display the FAR 6.302 exceptions.

6.302 Exception: 6.302-1 Only one responsible source and no other supplies or services will satisfy agency requirements.

[Click here for instructions to complete the boxes below.](#)

(1) Contracting Activity:

17th Contracting Squadron, PKB, Goodfellow AFB Texas, Air Education and Training Command (AETC).

(2) Nature and/or description of the action being approved:

This action is for a Sole Source contract to AV3 Inc to provide Phase 2 integration services for the Joint Worldwide Intelligence Communications System (JWICS) and Secret Internet Protocol Router Network (SIPR) Classified Video Teleconferencing (VTC) and Audio Visual (AV) equipment in Building 523, Rooms 201 and 202. This effort is a continuation of the 17 TRG VTC modernization program for which AV3 was the original designer/integrator, and had initiated the development in the same workplace.

(3) Description of the supplies/services required to meet the agency's needs:

The 17 TRSS has a requirement to renew and upgrade the Classified Video Teleconferencing (VTC) and Audio Visual (AV) equipment in Building 523, Rooms 201 and 202, which serve as Joint Worldwide Intelligence Communications System (JWICS) and Secret Internet Protocol Router Network (SIPR) Classified VTC conference rooms. These facilities are crucial to the mission support of multiple organizations, Distinguished Visitors (DV), General Officers, 17th Training Wing and subordinate organizations, 17th Training Group and all training squadrons (including 313 TRS, 315 TRS, and 316 TRS) for classified mission briefings and activities essential to the training mission. The requirement includes all necessary design, procurement, installation, and integration services to deliver a turnkey solution. A list of equipment has been provided as the Independent Government Estimate (IGE) which consists of over 250 line items for all parts, labor, and services.

(4) Identification of the exception to fair opportunity and the supporting rationale:

This justification is submitted under the authority of FAR 6.103-1, "Only one responsible source and no other supplies or services will satisfy agency requirements." The proposed sole source vendor is AV3, Inc., CAGE 5MNS4

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28275 Three Notch Road,
Mechanicsville, MD 20659.

A competitive procurement is not feasible as AV3, Inc. is the only source capable of meeting the government's requirements without causing substantial duplication of cost and unacceptable delays.

Proprietary Knowledge and Highly Specialized Services: As the original Designer of Record and integrator for the recently completed VTC modernization projects in Buildings 501 and 519, AV3 possesses unique and proprietary knowledge of the system's complex programming, custom architecture, and technology. This is not a simple hardware procurement; it is an acquisition for the continued provision of highly specialized services. Extensive market research conducted throughout 2025 confirmed that no other source possesses this specific, irreplaceable knowledge of the existing enterprise VTC suite, which is critical for a secure and seamless integration.

Substantial Duplication of Cost: Pursuant to FAR 6.103-1(c)(2)(i), awarding this contract to another source would result in substantial duplication of cost to the Government. This project is Phase 2 of a planned VTC upgrade. While on site as the awarded vendor for the Phase 1 installation of the VTCs across the campus, AV3 Inc completed extensive design and engineering tasks for phase 2 of this project. Any new vendor would be forced to expend significant time and resources to conduct site surveys to complete the design that has already been engineered by AV3. AV3s solutions for all VTCs will standardize the equipment and functionality across all campus systems. Introducing a different equipment baseline would require the unbudgeted retraining of on site government contractor VTC maintenance personnel, and would fracture the single point-of-contact warranty structure, creating untenable life cycle support costs. The 17 TRSS has requested that all end user GUI interfaces and programming of said devices provide the same end user and on site maintenance technician experience to that of Phase 1 VTCs recently installed. This will eliminate the need to retrain operators and technicians, and provide the same experience regardless of which VTC is in use. Lastly, direct acquisition from AV3 eliminates the 5-10% pass-through markup of a prime/sub relationship, representing a direct cost saving.

Unacceptable Delays in Fulfilling Agency Requirements: Pursuant to FAR 6.103-1(c)(2)(ii), a competitive award would lead to unacceptable delays in fulfilling the agency's requirements. This contract requires all contractor personnel to possess TS/SCI clearances and the company to hold a Top Secret Facility Clearance Letter (FCL) prior to commencing work. AV3, Inc. currently meets these mandatory requirements. Any new prime or sub vendor awarded, that does not meet these mandatory qualifications at the time of award would be subject to the lengthy and uncertain clearance process, which can take many months with no guarantee of approval. Such a delay would jeopardize mission-critical timelines and is therefore unacceptable as parts of these VTCs are non operational.

(5) Contracting Officer's determination that the anticipated cost to the Government will be fair and reasonable:

The Contracting Officer will make a determination that the anticipated cost to the Government is fair and reasonable prior to award. To support this determination, the government will leverage historical pricing data from recent Goodfellow AFB procurements that included both similar VTC equipment and installation services. This historical data will serve as the primary basis for analysis of the contractor's proposal. Direct negotiations will be conducted with the sole source vendor, and if it becomes necessary to further substantiate the proposed costs, the Contracting Officer will request other than certified cost or pricing data to ensure the final agreed-upon price is fair and reasonable.

(6) Other facts supporting the justification:

It is required that the 17 TRSS has a single point of contact for all VTC contracts for warranty support, due to the highly specialized nature of the equipment, and the custom programming of devices that is required for each individual location.

(7) Actions the agency may take to remove or overcome any barriers to increasing fair opportunity before any subsequent acquisition for the supplies or services:

The primary barrier leading to this sole-source action was the incremental, phased funding of a larger, singular requirement. This approach, necessitated by budget constraints, limited the competitive field to the incumbent vendor who possessed the unique and immediate capacity to perform the follow-on work without schedule disruption.

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To remove this barrier for future acquisitions of this nature, the agency's primary action will be to revise its acquisition and budget planning. For subsequent efforts, the program office will seek to secure full, upfront funding to solicit the entire requirement as a single, complete project.

This revised strategy will directly foster competition by:

- 1) Enabling the agency to conduct comprehensive market research against the total requirement, providing a more accurate assessment of the competitive landscape.
- 2) Allowing sufficient time within the acquisition timeline for all interested vendors to meet prerequisites, including the ability to obtain necessary facility and personnel security clearances prior to contract award.
- 3) Presenting a stable, fully-defined requirement that allows potential offerors to propose comprehensive and competitive solutions.

(8) Program Manager's certification that supporting data is accurate and complete:

As evidenced by my signature below, I certify that any supporting data contained herein, which is my responsibility, is both accurate and complete.

(9) Contracting Officer's certification that the justification is accurate and complete:

As evidenced by my signature below, I certify that the justification is accurate and complete to the best of my knowledge and belief.

(10) Approving Official's determination that one of the circumstances in [FAR 16.505\(b\)\(2\)\(i\)](#) applies to the order.

As evidenced by my signature below, I hereby determine that the fair opportunity exception checked on page 1 applies.

Date 30 Mar 2026	Daniel L. Majkowski 17 TRSS/TSXP / 654-5907	Signature MAJKOWSKI.DANIEL.L 
Date 30 Mar 2026	Elzara Kimalova, TSgt, USAF Contracting Officer 17 CONS/PKB / 325-477-3804	Signature KIMALOVA.ELZARA A.  Digitally signed by KIMALOVA.ELZARA Date: 2026.03.30 07:26:52 -05'00'